

CHAPTER 35.

A.D. 1921. — An Act to provide for the greater uniformity in the Weights and Measures used in the Sale of Corn and other Crops, to amend the Corn Returns Act, 1882, and for purposes connected therewith. [17th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Sale of corn
to be by
weight.

1. From and after the commencement of this Act, every contract, bargain, sale or dealing relating to corn shall, unless it is made or had by weight only and in terms of and by reference to the hundredweight of one hundred and twelve imperial standard pounds, be null and void :

Provided that this Act shall not apply to any contract, bargain, sale or dealing—

- (i) for or relating to a less quantity of corn than one hundred and twelve imperial standard pounds ;
- (ii) for or relating to corn which at the date of the contract, bargain, sale or dealing is not within the United Kingdom, or to corn imported into the United Kingdom so long as the same shall remain in the warehouse, or store, or shed where the same shall have been first stored on importation ;
- (iii) for or relating to corn imported into the United Kingdom in cases where such contract, bargain, sale, or dealing provides for delivery in the original bags in which the corn was imported (subject only to rebagging in replacement of damaged bags) ;
- (iv) for or relating to corn bought or sold for export from the United Kingdom ;
- (v) for or relating to corn growing on or in the land or to corn unthreshed.

Amendment
of Corn
Returns
Act, 1882.
45 & 46 Vict.
c. 37.

2. The Corn Returns Act, 1882, shall be amended as follows:—

- (1) In section five (which relates to the weekly returns of purchases of British corn) the words

“the weight or measure by which the same was bought” shall be repealed. A.D. 1921.
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- (2) For section eight (which relates to the computing of corn according to the bushel) the following section shall be substituted :—

“8. In the weekly summary of quantities and prices each sort of British corn shall be computed with reference to the hundredweight of one hundred and twelve imperial standard pounds.”

- (3) In subsection (6) of section nine (which relates to the computation and publication of averages) and in section ten (which relates to the application of the septennial average to the Tithe Commutation Acts) for the words “imperial bushel” there shall be substituted the words “hundredweight of one hundred and twelve imperial standard pounds.”

3.—(1) The corresponding minimum prices of wheat and oats to be fixed under section two of the Agriculture Act, 1920, shall be fixed in terms of the hundredweight of one hundred and twelve imperial standard pounds, and His Majesty may by Order in Council substitute for the minimum price of wheat and oats specified in section two of the Corn Production Act, 1917, and section two of the Agriculture Act, 1920, equivalent minimum prices expressed in terms of the hundredweight aforesaid.

Minimum prices under the Corn Production Acts, 1917 and 1920, to be fixed in terms of hundredweight.
10 & 11 Geo. 5. c. 76.
7 & 8 Geo. 5. c. 46.

(2) The average price of wheat or oats for the purposes of Part I. of the Corn Production Act, 1917, shall be the average price computed with reference to the hundredweight aforesaid instead of the average price per quarter, and His Majesty may by Order in Council make such modifications in that Act as are necessary to adapt that Act to the provisions of this section.

(3) All copies of the Corn Production Act, 1917, and of the Agriculture Act, 1920, printed after any Order in Council is made under this section shall be printed with the addition thereto, the omission therefrom, or the substitution therein of such words as are directed by the Order to be so added, omitted, or substituted, and that Act shall be construed as if it had at the time when the Order is made been enacted with the addition, omission, or substitution so directed to be made.

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Corn when deemed to be purchased in a town for purpose of Corn Returns Act, 1882.

Adaptation of Acts and awards providing for payment based on price of imperial bushels or other measures.

Interpretation.

Short title and commencement.

4. Where an offer to buy corn is made in any town the corn shall, for the purposes of the Corn Returns Act, 1882, be deemed to be bought in that town, notwithstanding that the offer is accepted elsewhere.

5.—(1) Where under the provisions of any Act or award or other instrument any payments are to be calculated on the price or value of an imperial bushel of wheat, barley, or oats, those provisions shall have effect as if the payment were to be calculated on the price or value of sixty imperial pounds of wheat, fifty imperial pounds of barley, or thirty-nine imperial pounds of oats, as the case may be.

(2) Where under the provisions of any Act or award or other instrument any payments are to be calculated on the price or value of any measure of wheat, barley, or oats other than the imperial bushel, the Minister of Agriculture and Fisheries, or, as regards Scotland, the Board of Agriculture for Scotland, may certify what number of imperial pounds ought, having regard to the foregoing provisions of this section, to be substituted for that other measure, and thereupon those provisions shall have effect as if the payment were to be calculated on the price or value of the number of imperial pounds so certified.

6. In this Act the expression “corn” shall, where the context permits, include wheat, barley, oats, rye, maize and the meal and bran derived therefrom, and any mixture thereof, and this Act shall apply to dried peas, dried beans, linseed and potatoes, and to the seed of grass, clover, vetches, swedes, field turnips, rape, field cabbages, field kale, field kohlrabi, mangels, beet and sugar-beet, flax, and sainfoin in like manner as it applies to corn.

7.—(1) This Act may be cited as the Corn Sales Act, 1921.

(2) This Act shall come into operation on the first day of January, nineteen hundred and twenty-three.